

day to day (excluding weekends and holidays) until the seven (7) hours is completed.

3. By noon on May 22, 2026, Plaintiff will provide Defendant Antioch Unified School District with five dates between June 1, 2026 and July 17, 2026 on which she will be available for the mental health examination by Dr. Shaw.
4. Plaintiff will submit to a neurological examination by Dr. Graham Fisher at Leone Alberts & Duus, located at 1390 Willow Pass Rd., Ste 700, Concord, CA 94520.
5. Dr. Fisher's examination may take up to 75 minutes.

2. 9:00 AM CASE NUMBER: C24-00442

CASE NAME: JORGE DUARTE VS. CARLOS AVALOS

HEARING ON SUMMARY MOTION

FILED BY: CSAA INSURANCE EXCHANGE

TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

3. 9:00 AM CASE NUMBER: C24-00442

CASE NAME: JORGE DUARTE VS. CARLOS AVALOS

HEARING ON SUMMARY MOTION

FILED BY: DUARTE, JORGE

TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM 1ST AMENDED COMPLAINT**

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

The motion of Defendants Anthony and Paula Jurado to strike punitive damages allegations in Plaintiff Timothy F. Clancy's first amended complaint is **denied**.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy owns the 32.4-acre property at 7090 Camino Tassajara, and Defendants Anthony and Paula Jurado own the property directly across the creek at 7150 Camino Tassajara. (FAC ¶¶ 12–14, 23.) The First Amended Complaint (FAC) filed on December 10, 2025 asserts causes of

action for negligence, trespass, private nuisance, public nuisance, premises liability, equitable indemnification, three negligence per se causes of action based on local and state water-quality statutes, and declaratory relief.

Plaintiff alleges that Defendants acquired their property with full knowledge that an abutting creek was present, that the creekbank would require maintenance and improvement, and that the creek bed contained protected species. (FAC ¶ 2.) Defendants' property contained a creekbank extension with improper fill comprised of concrete, asphalt, tires, and debris, and Defendants had long been advised of these facts. (FAC ¶ 3.) Despite this, Defendants allegedly mismanaged their property over the years, made improvements and engaged in construction without permits, and failed to guard against material, debris, and pollutants from being discharged into the creek. (FAC ¶ 27.)

In or about 2022, Defendants' property began to fail, and fill material, asphalt, vehicle tires, and other debris fell from their property into the creek. Plaintiff alleges on information and belief that some of the material must have been dumped into the creek because it could not have come from land. (FAC ¶ 30.) Defendants allegedly responded with self-help by installing fill into the creek bed, removing dirt from the bank, adding dirt and compacted soil, removing vegetation and trees, negligently installing a keyway, cutting into the bank, and installing "riprap" that was too small to handle the waterflow of the creek. (FAC ¶¶ 4, 28.) Plaintiff alleges this work was performed without the assistance of professional consultants and without permits from any relevant governmental agency. (FAC ¶ 5.) The work then failed, causing the improper fill and other debris to slide out of the bank and become imbricated in the creek bed at locations that block and divert historic water flow and cause significant erosion to Plaintiff's property. (*Ibid.*) Plaintiff alleges that approximately 8 feet of lateral creek bank has eroded, the eastern channel of the creek is now blocked so that waterflow proceeds entirely along Plaintiff's bank, and the pollutants present an imminent risk to Plaintiff's water wells. (FAC ¶¶ 6, 7, 31.)

Plaintiff alleges that Defendants were told repeatedly they needed to work with engineers to remedy the issues, and Plaintiff had also repeatedly notified them of the need for restoration and the likelihood of further failures. (FAC ¶¶ 8, 39, 40, 57.) Despite these warnings, Defendants "doubled and tripled down" and have willfully refused to remediate the creek. (FAC ¶¶ 42, 43, 58.) Contra Costa County issued an order of abatement, but instead of presenting any plan to clean the creek, Defendants responded by advocating "for doing nothing. . . and lobbying for inaction," and in that process did not provide governmental agencies with "true, accurate, or complete information." (FAC ¶¶ 9, 10.) Plaintiff alleges that the harm to Plaintiff, including ongoing erosion, threatened loss of Heritage Oak Trees, contamination of a protected waterway, and risk of another "largescale landslide," continues

to accrue. (FAC ¶¶ 6, 11, 35, 41, 64, 65, 78.) Plaintiff alleges Defendants acted with malice, oppression, and in conscious disregard of Plaintiff's rights and punitive damages are justified. (FAC ¶¶ 58, 66, 79.)

Defendants move to strike punitive damages allegations from the FAC. Specifically, they move to strike Paragraph 58 (Second Cause of Action for Trespass, page 12, lines 6–10), Paragraph 66 (Third Cause of Action for Private Nuisance, page 13, lines 20–24), and Paragraph 79 (Fourth Cause of Action for Public Nuisance, page 15, lines 20–24), each of which alleges on information and belief that Defendants acted with malice, oppression, and a conscious disregard of Plaintiff's rights, as well as Paragraph E of the Prayer for Relief (page 25, line 7), which seeks punitive damages according to proof.

Meet and Confer

Before filing a motion to strike, the moving party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc., § 435.5.) Any determination by the court that the meet and confer process was insufficient is not grounds to grant or deny a motion to strike. (*Id.*, § 435.5(a)(4).)

The meet and confer requirement has been satisfied. The parties met and conferred by telephone on January 7 and January 15, 2026, but were unable to resolve their dispute over the punitive damages allegations. (Mavrogianis Decl. ¶¶ 4-6.) The declaration also refers to a demurrer filed jointly with the motion to strike (*id.*, ¶ 6), however, the docket reflects no such filing.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subs. (a)–(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Punitive Damages

To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Civil Code section 3294 provides that a plaintiff must allege the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)–(3).)

A claim for punitive damages must be pleaded with specificity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041–1042.) Allegations that a defendant's conduct was "wrongful, willful, wanton, reckless or unlawful" are not enough on their own; the plaintiff must plead facts that support the conclusion that the defendant acted with malice, oppression, or fraud. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

Analysis

Defendants argue that Plaintiff has not alleged any specific facts showing they acted with malice, oppression, or fraud, and that the FAC's punitive damages allegations rest on nothing more than conclusory assertions. They characterize the conduct alleged as a mere failure to prevent debris from entering a creek and the implementation of "emergency bank-stabilization measures (riprap)," which they contend cannot rise to the level of conduct required under Civil Code section 3294. (Mot., p. 4:17-21.)

Defendants' brief addresses only a fraction of the conduct alleged in the FAC. Defendants frame each cause of action as resting only on the paragraphs that follow the incorporation paragraph; that is, the trespass claim on Paragraph 54, and the private and public nuisance claims on the few paragraphs that follow each incorporation paragraph. But each cause of action incorporates by reference all preceding paragraphs of the FAC. (FAC ¶¶ 53, 59, 67.) Read as a whole, as the Court must on a motion to strike, the FAC pleads more than failure to prevent debris from entering a creek and the placement of emergency riprap. The pleading alleges a course of conduct in which Defendants are alleged to have known of a hazardous condition when they purchased their property, ignored repeated warnings to retain qualified

professionals to assess the situation, performed unpermitted work that worsened the condition, defied an abatement order, and provided incomplete or inaccurate information to the regulators charged with overseeing the creek.

The FAC pleads the following specific facts supporting the request for punitive damages. First, Plaintiff alleges that Defendants acquired their property "with full disclosure" that it abutted Tassajara Creek, that the creekbank would require maintenance and improvement, that the creekbank already contained an improper fill extension comprised of concrete, asphalt, tires, and debris, and that the creek bed was inhabited by protected species. (FAC ¶¶ 2-3.)

Defendants' alleged knowledge of the hazardous condition at the time of acquisition supports an inference that their later conduct was undertaken with awareness of the risks involved and not in response to an "emergency," as Defendants state.

Second, the FAC alleges affirmative conduct, not merely the passive failure to prevent debris from entering the creek. Defendants are alleged to have installed fill within the protected creek bed, removed dirt from the bank, added dirt and compacted soil, removed vegetation and trees, negligently installed a keyway, cut into the bank, and installed riprap "far too small to handle the waterflow" of Tassajara Creek without retaining qualified professional consultants or obtaining permits from any relevant governmental agency. (FAC ¶¶ 4-5, 28.) These are allegations of unauthorized work in a regulated waterway, in violation of multiple statutes and regulations. (FAC ¶¶ 91-121.)

Third, Plaintiff alleges that "some of the material was dumped from the [Defendants' property] into the Tassajara Creek" because the materials at issue could not have come from land naturally. (FAC ¶ 30.)

Fourth, Plaintiff alleges that Defendants were warned repeatedly that they needed to act at a higher standard with professional engineering teams (FAC ¶ 8), that Plaintiff repeatedly notified Defendants of the need for restoration and the likelihood of further failures (FAC ¶ 39), and Defendants "ignored every warning and notification," including by the County. (FAC ¶ 42.)

Fifth, Plaintiff alleges that Contra Costa County issued a formal order of abatement, and that rather than remediate, Defendants advocated for doing nothing, lobbied for inaction, and did not provide governmental agencies with true, accurate or complete information. (FAC ¶¶ 9-10.) These allegations show conscious disregard in that Defendants knew of the problem, chose not to fix it, and worked to obstruct agencies trying to address it.

Two appellate decisions support the conclusion that the conduct alleged is sufficient to support punitive damages at the pleading stage.

In *Armitage v. Decker* (1990) 218 Cal.App.3d 887, the Court of Appeal affirmed an award of punitive damages where the defendant constructed a dirt berm "in such a way that all runoff would necessarily pass onto [the neighbor's] property" and "took no steps to minimize the risk of runoff." (*Id.* at p. 906.) The court held that the defendant's failure to comply with building code requirements regarding setbacks, slope, and compacting of fill, requirements "intended to minimize problems caused by earth slippage," established that the defendant acted in disregard of the rights of adjoining owners sufficient to support a finding of malice. (*Id.* at pp. 906-907.) Plaintiff has alleged a similar pattern of unpermitted work that altered the flow of a watercourse onto Plaintiff's property, performed in violation of code provisions enacted to protect adjoining owners and the public.

In *Goshgarian v. George* (1984) 161 Cal.App.3d 1214, the Court of Appeal affirmed an award of punitive damages on a trespass claim where the defendant drained stagnant swimming pool water onto a neighboring property after being told to desist by the property owners and a sheriff's deputy, attempted to conceal his continued trespass, permitted permanent improvements to encroach on the neighbor's land after being warned they would do so, and refused to move them after a survey confirmed the encroachment. (*Id.* at 1225.) The court held that this conduct "manifested an unmistakably conscious disregard for the property rights of cross-complainants" sufficient to establish malice under section 3294. (*Ibid.*) The conduct in *Goshgarian* was more aggravated, but the FAC alleges a similar pattern: continued harm to a neighboring property after repeated warnings to desist (FAC ¶¶ 8, 39, 42), defiance of a formal abatement order (FAC ¶¶ 9-10), and incomplete or inaccurate disclosures to the agencies overseeing the creek. (FAC ¶ 9.)

Defendants argue in reply that the FAC fails because it does not allege "despicable conduct," a requirement added to Civil Code section 3294 by the 1987 Brown-Lockyer Civil Liability Reform Act, and that the cases Plaintiff relies on were decided before that amendment. (Reply at pp. 2-5.) "Despicable conduct" is conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1228.)

After the 1987 amendment, "[c]onscious disregard for the [rights or] safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences." (*Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1299.) And as discussed above, the appellate court in *Armitage v. Decker*, decided after the amendment in 1990, affirmed an award of punitive damages on sufficiently similar facts.

Defendants characterize the conduct alleged in the FAC as, at most, "negligent maintenance of a creek bank, unpermitted work, and failure to remediate erosion." (Reply, p. 1:26-28.) But

the FAC alleges intentional dumping of debris (FAC ¶ 30), defiance of a County abatement order (FAC ¶¶ 9-10), incomplete or inaccurate disclosures to regulators (FAC ¶ 9), and continued conduct after repeated warnings. (FAC ¶¶ 8, 39, 42.)

The Court finds that the allegations of the FAC are sufficient to support Plaintiff's request for punitive damages at the pleading stage and the arguments Defendants raise are better suited to summary adjudication or trial.

Disposition

Based on the foregoing, Defendants' motion to strike is **denied**.

5. 9:00 AM CASE NUMBER: C24-02180

CASE NAME: GRETCHEN HUGHES VS. PATRICK O'DONNELL

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE SECOND AMENDED COMPLAINT AND TO CONSOLIDATE ACTIONS

FILED BY: HUGHES, GRETCHEN

TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint and to Consolidate Action is granted. Plaintiffs shall file their Second Amended Complaint by noon on May 18, 2026. Upon service by Plaintiff, Defendants shall have 30 days to file responsive pleadings.

This action is consolidated with Contra Costa County Case Number 26-00612, with the instant case to be designated the lead docket.

Court vacates the August 26, 2026 Settlement Conference.

Parties are ordered to appear **Monday, June 22, 2026 at 8:30 a.m. in Dept. 32 for a Case Management Conference (CMC)**. Zoom appearance is allowed. Parties must file and serve updated CMC Statements 10 days in advance of June 22, 2026.

6. 9:00 AM CASE NUMBER: C25-00529

CASE NAME: MARCI TREVINO VS. RAMSELL CORPORATION

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAMSELL CORPORATION

TENTATIVE RULING:

Defendant Ramsell Corporation's demurrer to the fifth cause of action in the complaint is **sustained with leave to amend**.